TALENT MABVUWO
Versus
THE STATE

HIGH COURT OF ZIMBABWE
MUZOFA J
CHINHOYI, 27 February 2026

Assessors: *1. Mr. Mutayiwa*
2. Dr. Mashavave

Criminal Trial – Leave to appeal to the Supreme Court

J. Zuze, for the applicant
N. A. Sibesha, for the State

MUZOFA J: [1] The applicant was convicted after a trial with murder in contravention of s47 of the Criminal Law Code. He was sentenced to 10 years imprisonment.

[2] Immediately after passing sentence, *Mr Zuze* applied for leave to appeal against both conviction and sentence to the Supreme Court in terms of r94 (1) of the High Court Rules, 2021.

[3] In an ex-tempore judgment I dismissed the application on the basis that it lacked substance; there were no prospects of success on appeal.

[4] A request for the written reasons was made. The delay in providing the reasons is regrettable. An administrative glitch delayed the provision of the transcribed ex-tempore judgment.

[5] The applicant was convicted for shooting a suspect, the now deceased that he and other police officers intended to arrest. The deceased was shot while in his bedroom at his homestead.

[6] In his application, *Mr Zuze* referred to the relevant law on the requirements to be satisfied in such an application. He also set out the intended grounds of appeal against both conviction and sentence. The paraphrased grounds of appeal are as follows,

i) Ad conviction

a. The court misdirected itself in finding that there was no imminent attack yet the applicant subjectively believed that there was an imminent attack.
b. The court misdirected itself in finding that the applicant made a preemptive attack when there was no imminent attack.
c. The court misdirected itself in making a finding that at the time the deceased was shot, he was not wielding a weapon.

ii) Ad sentence

a. The sentence induces a sentence of shock; the court overemphasized the offence over the applicant's mitigatory circumstances.

[7] On those grounds of appeal, it was submitted that there are prospects of success on appeal.

[8] The State opposed the application. Relying on the authority of *Chitsinde v Chitsinde & Anor SC 10/09* a civil matter that dealt with an application for condonation for late noting of an appeal the State urged the court to consider the prospects of success on appeal based on the grounds of appeal.

[9] Further, it was submitted that there are no prospects of success as regards both conviction and sentence considering the circumstances of the matter.

[10] In such an application, the overarching consideration is whether the appeal has prospects of success see *University of Zimbabwe v Kwanele Jirira & Anor SC 12/18.* Some cases have recast the approach as whether another court may come to a different conclusion on the facts.

[11] The task before the Court is merely gatekeeping not so much to re-write the judgment. The Court must be objective in its assessment since it is the same Court that handed down the judgment. The primary purpose is to sift whether the appeal is merited so that only deserving cases are heard on appeal. To that extent a litigant who seeks leave to appeal is required as a matter of procedure to set out the grounds of appeal he/she intends to rely on for the Court to determine their prospects of appeal.

Ad conviction

[12] The grounds of appeal placed before the court impugn factual findings on the imminency of the attack. *Mr Zuze* motivated the appeal based on the applicant's version of events. He completely disregarded the court's findings.

[13] What transpired when the deceased was shot spoke for itself, more of a *res ipsa loquitur*. There was no dispute that the applicant shot at the deceased. The bullet (s) that struck the deceased were fired when the deceased was behind a door contrary to the applicant's evidence.

[14] The door was described as a zinc sheet about 3mm thick it was quite thin. The real evidence before the court was the door with bullet holes. The only inference that emerges from that real evidence is that when the applicant fired the shot, the door was closed. The bullets went through it. Consequently, that means the deceased was not standing face to face with the applicant he was behind the door. For the applicant to submit that he was under an imminent attack from someone hidden behind a door is farfetched.

[15] On his part, the applicant did not explain the circumstances that made him believe that there was an imminent attack when he shot at the deceased who was behind the door. He dillydallied from the axe (which was not confirmed by evidence but an axe handle) to some

sound. The axe handle did not pose a threat at the time of shooting. Since the deceased was behind the door, he could not use the axe handle.

[16] That the deceased wielded an axe when he was shot is also factually incorrect. Real evidence disproved the applicant's proposition. The deceased sustained injuries on the inner side of his hands which confirmed Mathew Sivaminyile's evidence that they barricaded the door using their bodies. They also pushed the door using their hands. The Doctor who gave evidence to elucidate on the post mortem report dispelled the myth that the deceased could have held an axe or any weapon for that matter. The entry wounds were on the palm and the exit wounds were on the back of the hand. That was conclusive, no entry wound can be found on the palm while the same hand was holding something, the only inference is that the hand was open.

[17] The applicant's point is that he subjectively believed that he was under attack but the circumstances under which he discharged the firearm do not even show that there was an attack. The deceased who had initially tried to escape and abandoned the idea was now busy trying to resist arrest by barricading the bedroom door. This was evident to all.

[18] In order to assess intention, the court must have recourse to the circumstances surrounding the commission of the offence. The deceased had initially threated the Police officers. The accused said he then fired a warning shot directed to a window. We accepted that the deceased did not leave his bedroom at all. His bedroom was now a place of security since he could not escape through the window. We also accepted that the door was closed and barricaded by the deceased and Matthew. The accused was well aware that the deceased was behind the door since the door could flip in and out if not barricaded.

[19] The applicant fired three shots successively in those circumstances. The circumstances were such that death may result and he took the risk and persisted with his conduct. There are no prospects of success on appeal against conviction on those grounds.

Ad Sentence

[20] As regards sentence, the maximum penalty is life imprisonment. We found that the murder was not committed in aggravating circumstances in terms of s47 (2) and (3) of the Criminal Law Code. The court took into consideration the circumstances under which the offence was committed, the deceased deliberately evaded arrest, he threatened the police and the applicant's personal circumstances.

[21] It was highly aggravating that the appellant shot at the deceased who was behind a door. He was no longer a threat. The applicant was a trained police officer of senior rank. It is expected that those who are armed with lethal weapons, use them sparingly to avoid unnecessary fatalities. Police officers are there to arrest suspects that are alive. A dead suspect is not the one anticipated at law.

It is for those reasons that the following order was issued;

Application dismissed

J. Z. Zuze & Associates, the applicant's Legal Practitioners

National Prosecuting Authority, *the State's Legal Practitioners*